

**UNIVERSITY OF PORT HARCOURT
FACULTY OF LAW**

TOPIC: ALIENATION OF LAND UNDER CUSTOMARY LAW

1.0. MEANING AND TYPES OF ALIENATION

Alienation of land is the voluntary transfer of any right or interest in land from one person, who is the owner or deemed to be the owner, to a total stranger. The alienation could be total and permanent (absolute) or temporary (conditional). Examples of total and permanent alienations are sales and out-and-out gifts while examples of temporary alienations are conditional gifts, borrowing of land, pledges, mortgages, leases and tenancies.

A sale or an out and out gift divests the owner, donor or grantor of all his absolute interest and transfers the totality of his interest to the purchaser, donee or grantee. In **Jegede v. Eyinogun** (1959), it was held that a family which had made an absolute transfer of its land by way of gift could not recall the land upon misconduct. While a conditional grant or gift is usually for a specific purpose and once the condition has been fulfilled or defeated, it reverts to the grantor. As for borrowing of land, it is usually for temporary occupation like farming for a season. It is therefore inconsistent with the nature of borrowing of land for the land to be used for building purposes. Thus in **Adeyemo v. Ladipo & Anor** (1958), it was held that a temporary grant of land for building was unknown under customary law.

For the purposes of this topic, our concern will be absolute grant or sale of land under customary law and its attendant consequences. We shall consider conditional grant of land, which is pledge of land and customary tenant in our subsequent discussion.

1.1 SALE OF LAND UNDER CUSTOMARY LAW

The issue of alienation of land was foreign to native ideas in the olden days, because it was thought that land was so sacred to be disposed of the family. It was regarded as a deity; and the belief was that land was not only for the present generation but also for the future unborn generations, and thus it could not be alienated to their detriment. This idea was put forward by one of the chiefs of Ijebu-Ode, thus: *“I conceive that land belongs to a vast family of which many are dead, few are living and countless members are yet unborn”*. . Thus, sale of land by any person was almost completely unknown until European influence directly or indirectly made it felt. Instead what is found in many African societies is pledge (usufructuary mortgage) where the pledgee or creditor merely had the right to use land until such time as the pledgor or debtor satisfies his obligation/debt.

It is true that in parts of Africa (as in parts of Ibo-land and other places in Nigeria), the sale of land is unknown. But this is not the same as saying that it is prohibited by law. As it was pointed out by Chief Justice Osborne in **Lewis v. Bankole**, (1908), where he said:

“THE IDEAS OF ALIENATION OF LAND WAS UNDOUBTEDLY FOREIGN TO NATIVE IDEAS IN THE OLDEN DAYS BUT HAS CREPT IN AS THE RESULT OF CONTACT WITH EUROPEAN NOTIONS, AND DEEDS IN ENGLISH FORM ARE NOW IN COMMON USE”.

1.2 ALIENATION OF FAMILY LAND - MAJORITY RULE

Accepting that alienation of land by sale is now a feature of customary land tenure, the major problem connected with it is that of consent. Where the property is owned by an individual, there is no problem. The major problem arises with family property which is owned by many members either in sole family unit or by a number of associated units of the same family. The validity of the sale therefore depends on the capacity of members present at the time the sale was effected; that is, the head of the family and/or principal members that will confer a valid title to a purchaser. The general rule is that the consent of ALL the members must be sought, but when the consent of some of the members only is obtained, the sale may be either void or voidable. See: **Lukan v. Ogunsusi** (1972). It does not necessarily mean that the consent of all the members of the family must be sought and had before family land is disposed. It is sufficient if the principal members of the family consented to the sale. A principal member is the head of each branch or unit of the family. He is in most cases the eldest man of each branch or unit of the family or the eldest child of each wife as the case may be. The present position of the alienation of family property, from the review of cases and juristic authorities could be summarized as follows:

(1) Sale of family property by the head of the family with the consent or concurrence of the principal members of the family is valid in which case the purchaser acquires a valid title to the land. In the case of **Fayehun v. Fadoju** (2000), **Karibi-Whyte, JSC (as he then was)** restated the position in the instant case that: ***“it is essential to the validity of sale of family land that the chief or head of family must join in the conveyance and the principal members of the family must consent to the transaction”***. Such a combination of parties to the conveyance of family land by the chief or head of the family and the principal members of the family is unimpeachable. Thus, family land is validly alienated by the head of the family with the consent of accredited representatives or principal members of the family. See: **Adenle v. Olude**.

(2) Sale of family property by the head of the family without the concurrence of the principal members is voidable. It means that the title of the purchaser over the land is valid until set aside by an order of the court. See **Alli v. Ikusebiala** ; **Salako v. Dosunmu**.

(3) Sale of family property by the principal members without the concurrence of the head of the family is void ab initio. In this case, the title to the land still remains with family and the purchaser acquires nothing. In **Ajose v. Harworth** (1925), it was held that since the sale by Obalade to Cole in 1916 had been made without the consent and approval of his family, it was void and accordingly, Ajose (the Plaintiff), as one deriving title through Cole had no legal title to the land in question. See: **Ekipendu v. Erika** (1959). Thus, a sale of family land by a member of the family who is not the head of the family and without the concurrence of other members of the family is void. See: **Ojoh v. Kamalu** (2005).

(4) Sale of family property by accredited members of the family, including the head of the family, but without the head of the family joining in the conveyance, is valid. See **Fayehun v. Fadoju** (supra).

(5) Sale of family property by all or a majority of principal members without the head joining in the conveyance, where he had earlier consented to the sale, is valid. See: **Sewoniku v. Orotiosakin** (1986).

(6) It is submitted that where the head of the family is proved to have unreasonably withheld his consent, the sale of family property by all the principal members of the family without the head of the family concurrence or joining in the conveyance, is valid. The head of the family should not be allowed to “set up a dictatorship of the minority” against the majority of the principal members.

(7) It is also submitted that the sale of family property by the head of the family alone where he has been “authorized to sign all documents relating to land, on behalf of the family” by the principal members of the family, is valid.

1.3 SALE AS PRIVATE PROPERTY

Where the head of the family sells the family property as his private property, the sale will be absolutely void ab initio and the purchaser or purchasers who entered the land on the basis of such void sale will be a trespasser or trespassers ab initio. In the case of **O. Solomon v. A.R. Mogaji** (1982), where the head of the family at the time of the sale claimed that the court had adjudged him to be the absolute owner of the land in dispute as against the family. The purchaser bought the land on the strength of that claim by the head of the family. He never believed that he was buying family land. But before he started development, he was warned by members of the family. It was held by all the courts that notwithstanding the fact that the land was sold by the head of the family, it was void ab initio, since he sold it in his private capacity and not as head of the family; and that all the purchasers were trespassers ab initio. See: **Ejilemele v. Opara**.

It should be noted that where the head, principal members of the family or any members of the family sell the land as their personal property, the sale is void and valid title will not pass to the purchaser or purchasers. The principle of *Nemo Dat Quod Non Habet* would apply with equal force and the transaction will be deemed void ab initio. **Ojoh v. Kamalu**.

1.4 DISTINCTION BETWEEN VOID AND VOIDABLE DISPOSITION

The distinction between void and voidable sale of family property is very important. It will determine the legal interest of the purchaser over the property in question. The classic statement on the distinction between void and voidable act is emphatically stated by **Lord Denning, L.J.** (as he then was) in the celebrated case of **Macfoy v. United Africa Company Limited** (1962), when he stated that:

“If an act is void then it is in law a nullity. It is not only bad but incurably bad. There is no need for an order of Court to set it aside. It is automatically null and void without more ado. Though it is sometimes convenient to have the court declare it to be so. And every proceeding which is founded on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse.”

“But if an act is only voidable, then it is not automatically void. It is not to be avoided unless something is done to avoid it. There must be an order of the court setting it aside and the court has discretion whether to set it aside or not. It will do so if justice demands it, but not otherwise. Meanwhile it remains good and a support for all that has been done under it”.

IS THERE ANY REAL DISTINCTION BETWEEN VOID AND VOIDABLE DISPOSITIONS?

It has been argued by some scholars that there is no distinction between void and voidable dispositions but others had argued that there is a distinction having regard to the consequences they attract. The following are the distinctions:

Ratification: A voidable sale could be ratified by those whose consents were but a void sale cannot be ratified. See **Nwakobi v. Nzekwu** (1961); **Agaran v. Olushi** (1907).

Trespass: From the nature of a voidable title, the purchaser, in entering into the disposition and retaining possession during the interval before it is set aside, cannot be a trespasser. On the other hand, owing to the fact that a void disposition passes nothing, the purchaser enters into possession as a trespasser. See: **Onwuka v. The Abriba Clan Council** (1956); **Ekipendu v. Erika (supra)**.

Third Party Rights: where the voidable title is not avoided, any subsequent sale to a bona fide purchaser without notice completely defeats the title of the family. See: **Oshodi v. Imoru** (1936). But it is not so with a void sale. See: **Ajose v. Harworth (supra)**.

Competing Claims: As between void and voidable dispositions, the title of one with a voidable claim prevails. See: **Coker v. Animashawun** (1960). But in the case of two competing voidable claims, the person who is actually in possession can maintain an action in trespass against any other stranger, but this is not a case of priority or competing interests.

1.4.1 EFFECT OF A VOID DISPOSITION

A void disposition leaves the title in the family, the purchaser acquiring nothing. As such, any later purchaser from the family takes free of it. A good example is the case of **Ajose v. Harworth (supra)**; **Ekipendu v. Erika (supra)**. It should be noted that the family may, however, be prevented from recovering the land from the purchaser if it has been guilty of laches and acquiescence and the time within which to set aside the sale has elapsed by virtue of limitation law.

1.5. EFFECT OF A VOIDABLE DISPOSITION

A voidable title is valid until it is set aside by an order of court at the instance of the aggrieved member or members of the family, and that the effect is that the title would be preferred to that of a subsequent purchaser, even if it is with the consent of the whole family, unless and until it is set aside.

But an action to set aside a void or voidable sale must be timely. There is a delay where non-consenting member or members of the family wait 10, 15, 20 years etc. before acting to set a sale. However, time does not begin to run until the non-consenting member or members of the family have acquired necessary knowledge of the sale. In the case of **Mogaji v. Nuga** (1960), the Plaintiff purchased family land from the head of the family with the consent of two branches of that family. About ten years after the sale, the Appellants, who were of principal members of the family, objected to the sale for the first time on the ground that their consent had not been obtained. It was held that, even assuming that their consent had not been obtained, as they knew about the sale and had not done anything for ten years, it was too late for them to exercise their right to have it set aside. See: **Animashaun v. Onyekwuluje** (2006).

P.S.: This lecture note was NOT prepared by **Adv. Chimdike** and **Faithful**, they only highlighted certain parts to enhance clarity and ease of understanding.

Adv Chimdike et Faithful